

		Service on an individual is made by personal delivery to that person, or someone authorized to accept service of process on his behalf. Code Civ. Proc. § 415.10. Service on an individual can also be made by mailing the summons and complaint with notice of and acknowledgment to be returned by the individual. Code Civ. Proc. §415.30. Proof of service must be filed five court days before the hearing. CRC 3.1300(c). Petitioner filed a proof of service showing the petition was sent by regular U.S. mail to North Shore Poke Co Store 7, LLC ATTN: Managing Member Jackson Long. ROA No. 25. However, the mailing address on the proof of service (1148 South Street) is different than the address in the Operating Agreement (11488 South Street). In addition, the documents served included a Minute Order dated 10/29/2023. There is no Minute Order dated 10/29/2023 in this proceeding, nor would it be likely given the service date of 10/27/2023. "In making service by mail there must be a strict compliance with sections 1012, 1013 and 1013a." <i>Forslund v. Forslund</i> (1964) 225 Cal.App.2d 476, 485. Petitioner's proof of service does not comply with either the Operating Agreement or the Code of Civil Procedure. Petitioner shall serve a copy of the Petition and notice of continuance in accordance with Code of Civil Procedure section 1290.4, as detailed above. Clerk to give notice.
10	2023-01312590 Lopez, Bark & Schulz LLP vs. Ozy Media, Inc.	Lopez, Bark & Schulz LLP Motion to Confirm Arbitration Award Petitioner Lopez, Bark & Schulz, LLP moves to confirm the arbitration award entered against Respondents Ozy Media, Inc. and Carlos Watson. A petition to confirm an arbitration award must be served and filed at least 10 days, and no later than 4 years, after service of the award on the petitioner. (Code Civ. Proc. §§ 1288, 1288.4.) If a petition to confirm is duly filed, and unless the arbitration award is corrected or vacated, "the court shall confirm the award as made." (Code Civ. Proc. § 1286.) The petition shall (1) set forth the substance of the arbitration agreement or attach a copy thereof, (2) set forth the name of the arbitrator(s), and (3) set forth or attach a copy of the award and the written opinion of the arbitrator(s), if any. (Code Civ. Proc. § 1285.4.) "If an award is confirmed, judgment shall be entered in conformity therewith." (Code Civ. Proc. § 1287.4.) The Petition is timely. The award is dated 1/8/23, and the petition was filed and served more than 10 days but less than 4 years later, on 2/21/23. Petitioner has complied with Code Civ. Proc. § 1285.4, by including a copy of the arbitration agreement, stating the name of the arbitrator (Charles Parrett of AAA), and including a copy of the arbitration award. Respondent Ozy Media, Inc. does not oppose the motion. Respondent Carlos Watson filed an opposition, arguing that the court lacks jurisdiction over him as he was never properly served with the Petition. Petitioner concedes in its Reply brief that it did not initially properly serve Respondent due to a misunderstanding. (Lopez Decl. ¶ 2.)

		Since that time, however, Petitioner demonstrates that it has effectuated proper service on Respondent. Specifically, Petitioner sets forth evidence that Respondent's counsel agreed to accept service of documents in this manner by email, and that Petitioner subsequently served the Petition on counsel in this manner. (Lopez Decl., ¶¶ 3-5, Ex. B.) Respondent's counsel never responded that he was not authorized to accept service. (Lopez Decl., ¶ 5.) Pursuant to Code Civ. Proc., § 416.90, "summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process." In <i>Warner Bros. Records, Inc. v. Golden West Music Sales</i> (1974) 36 Cal.App.3d 1012, the Court of Appeal reversed the lower court's grant of a motion to quash service of summons, holding that service on the defendants' attorney was sufficient per § 416.90. Like in this matter, the defendants argued that the attorney was not authorized to receive service of process on behalf of them and, which was supported by declarations. (<i>Id.</i> at 1015.) The court held that because counsel was retained as the defendants' attorney, he was their agent. (<i>Id.</i> at 1017.) The court found that the essential factor here is that [counsel's] relationship with the individual defendants may have been sufficiently close and enduring to make it reasonably certain that they would be apprised of the service on [counsel] upon their behalf. (<i>Id.</i> at 1018.) For the same reasons, the Court here finds that Petitioner has shown proper service pursuant to Code Civ. Proc., §§ 416.90 and 1290.4. The Court is thus inclined to grant the motion to confirm the arbitration award, and vacate the upcoming hearing on Respondent's motion to quash, as it will be rendered moot. However, before the Court will enter an order confirming the arbitration award, <u>Petitioner is ordered to file a code-compliant proof of service of the Petition</u> (as is reflected by Ex. B to the Lopez Declaration). Petitioner is ordered to give notice.
11	2014-00738895 South County Bank, N.A. vs. Von Auto Care	South County Bank, N.A. Motion to Enforce Settlement Plaintiff Bank of Southern California, N.A., successor by merger to CalWest Bank, fka South County Bank, N.A.'s motion to enforce settlement agreement is GRANTED. In August of 2014, the parties entered into a binding Stipulation for Entry of Judgment. (Decl. of Hong, Ex. A). Pursuant to the Stipulation, Plaintiff was entitled to judgment against Defendants in the principal amount of \$54,600 with an interest rate of 6% per annum as calculated under the Stipulation. (<i>Id.</i> at ¶¶ 1-6.) In the event payment was not received within seven days of its due date, the Defendants would be in default and Plaintiff would be entitled to the full amount due. (<i>Id.</i> at 9.) Further, in the event a motion to enforce the terms of the Stipulation is made, Plaintiff would be entitled to recover \$54,600, less principal payments made, plus accrued interest, attorney fees of \$1,500 and court costs and which shall provide for an order entitling Plaintiff to the collateral identified in the UCC financing statement filed with the Secretary of State of the State of California on September 27, 2004, filing number 04-7000572328 and recorded with the Orange County recorder on September 30, 2004 as document no. 2004000879322 and with the UCC continuation statements that were filed with the Secretary of State of the State of California on May 14, 2009,